

hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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First Select Corporation v. Paniagua, J.

26-08396

HEARING OF CLAIM OF EXEMPTION

TENTATIVE RULING: The matter is CONTINUED to July 22, 2026, at 8:30 a.m. in Dept. A due to Judgment Creditor's failure to file a Proof of Service of the (1) Notice of Opposition to Claim of Exemption and (2) Notice of Hearing on Claim of Exemption, on the Judgment Debtor. (Code Civ. Proc., § 703.570, subd. (b).) July 22 is the latest possible date for a continuance. (*Id.*, § 703.570, subd. (a)(1).) If a Proof of Service showing proper service on the Judgment Debtor is filed prior to the next hearing, the hearing on the Claim of Exemption will proceed. However, if no proper Proof of Service is filed prior to the next hearing, the Court will be forced to deny the Notice of Opposition, as there is no showing in the file for good cause to extend the hearing past 30 days from the date of filing the notice of opposition. (*Ibid.*)

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Estate of Marie-Louise Sardeman

26PR000133

PETITION FOR PROBATE OF LOST WILL AND FOR LETTERS TESTAMENTARY
AND AUTHORIZATION TO ADMINISTER UNDER THE INDEPENDENT
ADMINISTRATION OF ESTATES ACT

TENTATIVE RULING: The Petition is GRANTED. Michael Torr is appointed as probate referee. Petitioner shall immediately submit Proposed order (DE-140) and letters (DE-150) for the Court's signature. The matter is set for a Status Hearing Re: Final Distribution on July 16, 2027, at 8:30 a.m. in Dept. B. The Status Hearing may be vacated or continued without appearances needed if, prior thereto, the personal representative files a petition for an order for final distribution or a report of status of administration pursuant to Probate Code section 12200. The Clerk is directed to provide notice to the parties.

[1] PLAINTIFF’S MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFF’S SPECIAL INTERROGATORIES, SET THREE AND REQUEST FOR SANCTIONS

TENTATIVE RULING: The motion is GRANTED. Within 21 days of Notice of Entry of Order, Defendant shall (1) serve further verified, substantive responses, without objection, to the Subject Discovery, and (2) pay to Pearce, care of his attorney of record, sanctions in the amount of \$2,025. Pearce is directed to provide Notice of Entry of Order.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

A. PROCEDURAL MATTERS

Plaintiff Jarred Pearce (“Pearce”) moves, pursuant to Code of Civil Procedure sections 2017.010, 2023.010, 2023.030, and 2031.310,¹ for an order compelling Defendant Modern Cooperage USA LLC (“Defendant”) to serve further verified responses to Pearce’s Special Interrogatories, Set Three, Nos. 44-58 (collectively, “Subject Discovery”). Pearce further seeks monetary sanctions against Defendant and its counsel of record, DLA Piper LLP (US), jointly and severally, in the amount of \$3,850.00. The Motion is brought on the grounds that Defendant’s objection-only responses are deficient because Defendant asserted boilerplate objections and has refused to provide substantive responses.

While neither Pearce’s Notice of Motion nor Memorandum cite to the applicable authority for compelling further responses to *interrogatories*, instead only citing to section 2031.310, Defendant waives that procedural defect by failing to raise an objection to it and filing a substantive opposition to the merits of the Motion.

Defendant spends considerable time discussing how Pearce’s anticipated First Amended Complaint to add BIT365, Inc. as a defendant will “obviate” and render “moot” “much of” the present motion. (See Opp., 2:22-3:2, 3:19-4:9, fn. 1; see also Declaration of Elias Parisca (“Parisca Decl.”), ¶¶ 4-9.) Defendant does not articulate in what way the motion will be rendered moot by the addition of that defendant. The Court draws a reasonable inference that, if BIT365 is added as a defendant, Defendant’s objection on relevance grounds will be removed. This inference is reasonably drawn from Defendant’s emphasis in Opposition on the point that

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.